

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Record-Complete and Briefing Order

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Entered February 2, 2026

The district clerk has transmitted the certified electronic record from Western District of North Carolina Case No. SYN-WDNC-24-CV-0520. The appellate clerk has compared the transmission certificate, docket sequence, designated transcripts, and identified exhibits. No unresolved transcript order or missing designated item appears. The record is therefore declared complete for briefing as of February 2, 2026, without prejudice to a timely, particularized motion to correct a demonstrated error.

Completion means that the filed district materials are available for citation and appendix preparation. It does not authenticate a new exhibit, resolve a dispute about the significance of a transcript statement, or permit either party to replace the two Rule 50(a) motions with a different formulation. Any request to modify the record must identify the item, establish that it was before the district court, and explain why correction is necessary.

The clerk notes that appellant certified no additional transcript was required and appellee identified no omitted reported proceeding. That agreement concerns completeness only. Each side remains free to dispute preservation, evidentiary weight, the conditional Rule 59 ruling, the scope of retrial, and the appropriate appellate disposition in its merits brief.

Tailored merits schedule

By direction of the court, and under its authority to adjust briefing time, the following exact schedule governs: Blue Ember's opening brief and the parties' appendix are due March 9, 2026; Granite Heron's response brief is due April 8, 2026; and Blue Ember's reply brief is due April 20, 2026. The opening period and reply period are shortened from ordinary default intervals to permit orderly consideration during the court's spring calendar. These are court-set dates, not calculations counsel may extend by agreement.

A motion affecting a deadline must be filed before the date at issue and must state opposing counsel's position, prior extensions, concrete reasons, and the requested replacement date. Unless an order grants relief, the existing deadline remains controlling. The response date falls thirty days after the opening filing; the accelerated reply is due twelve days after the response. Filing on the last day must be completed through the authorized system before its applicable cutoff.

Briefs shall address appellate jurisdiction, the actual content of both pre-verdict motions, the distinct standards governing renewed judgment and a Rule 59 new trial, the separability of damages from liability and causation, and the consequences of Rule 50(c). The schedule does not predetermine how those questions should be answered.

Appendix, service, and submission instructions

The parties shall prepare a joint appendix containing only record materials useful to the issues on appeal. They should avoid needless duplication and retain the district filing sequence where practical. A disputed item may be included with a concise reservation, but neither party may insert a hypothetical pre-verdict motion, an altered transcript, or a postjudgment factual submission that the district court never received. Counsel must certify cooperative preparation and record fidelity.

Electronic filing will serve all counsel of record. Blue Ember is represented by Maya Holt and Jonas Bell of Holt Bell PLLC; Granite Heron is represented by Eli Mercer and Tara Webb of Mercer Webb PLLC. Each filing must bear appellate number SYN-CA4-26-CV-4105 and comply with applicable form, length, redaction, and accessibility requirements. Any sealed material requires the prescribed separate treatment rather than inclusion in a public filing.

After the reply is filed, the case will be screened for oral argument or submission on the briefs. A later calendar notice will identify any argument date, panel, location, time allocation, and logistical directions. No argument date is created by this order. Entered at the direction of the Fictional Fourth Circuit exercise clerk on February 2, 2026, with electronic notice to all appellate counsel and linked notice to the originating district clerk.